

[About EDS](#)[About us](#)[Our board](#)[What we do](#)[Policy](#)[Litigation](#)[Events](#)[Areas of work](#)[Publications](#)[Bookstore](#)[Documents](#)[Get involved](#)[Support EDS](#)[Donate](#)[Young lawyer
fund](#)[Students](#)**Support
EDS****Environmental
Defence
Society**

[< All media statements](#)

Resource management bills pass third reading and will become very bad law

23 September 2026

The Planning Bill and Natural Environment Bill, which will replace the Resource Management Act, yesterday passed their third reading in Parliament. They will become law once they receive Royal Assent in the coming days, at which point a complex transition from the existing system will begin.

“As we have said from the outset, these Bills are deeply deficient for the environment as well as being excessively complex,” said EDS Reform Director Dr Greg Severinsen.

“At every step through the legislative process, they have got worse. Despite EDS engaging constructively and deeply with the government over the last two years and producing detailed evidence-based policy and legal analysis, we have ended up with laws that will undo decades of progress to protect and restore our environment. Those who speak for nature have been ignored.

“Regulatory relief will require councils to compensate landowners for biodiversity and landscape protections, including those that currently exist. In practice, that means most protections will be jettisoned, despite a biodiversity crisis and landscape forming a cornerstone of our tourism sector. It will create a hot mess of litigation that will ossify plan-making.

“Environmental limits are a joke and are unworthy of the name. They will be set by balancing environment against short-term economic aspirations. Voluntary measures are explicitly preferred over regulation, and any activity having a net public benefit can be exempted.

“Swimmable rivers and lakes look to remain a thing of the past and pollution will worsen. Existing marine protections to control the impacts of fishing on marine biodiversity will be lost. Most urban trees will no longer be protected. Consideration of greenhouse gas reduction is off the table. Cities can sprawl without constraint. Public participation has been stripped away.

“The irony is that we can achieve economic prosperity at the same time as environmental protection, but these new laws only pull in one direction. They are an unmitigated disaster for the natural environment and extensive further revision and reform is now inevitable,” concluded Dr Severinsen.

+64 9 302 2972

manager@eds.org.nz



Donate to EDS

Become a Supporter

Newsletter signup

© Copyright 2026 Environmental Defence Society • T&Cs